

UTILITY EASEMENT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS, that the Brecksville-Broadview Heights City School District, (hereinafter referred to as District), owner of Parcel A as described on the attached Exhibit A, and City of Brecksville, an Ohio Municipal Corporation, (hereinafter referred to as City), owner of Parcel B, as described on the attached Exhibit B, in consideration of (\$1.00) and the mutual promises and obligations recited below, hereby covenant and agree as follows:

NOW, THEREFORE, in consideration of the mutual promises contained herein, the parties hereby agree as follows:

1. The following definitions shall apply to both the District and the City: the party conveying a Grant of Easement shall be referred to as the Grantor; the party receiving or benefitting from the Grant of Easement shall be referred to as the Grantee.

a. Utility Easement. Grantor hereby grants to Grantee, its successors and assigns forever, for the benefit of Grantee, a permanent, non-exclusive easement over, into, upon, and under the Easement Area, as depicted and described in Exhibit C, for the installation, construction, maintenance, repair, replacement, operation and use of utilities, including, but not limited to, a water main, storm sewer, sanitary sewer, natural gas, telecommunications, and electrical (the "Utility Easement").

b. Access Easement. Grantor hereby grants to Grantee, its successors and assigns forever, for the benefit of Grantee, a permanent, non-exclusive easement over and upon the Easement Area as is necessary to permit ingress, egress and access by Grantee, to and from the Easement Area for purposes of construction, maintenance, repair and replacement of utilities, facilitating the use of the Utility Easement by Grantee (the "Access Easement") (the Access Easement and Utility Easement are collectively referred to herein as the "Easements").

c. Minimizing Impact. Construction, maintenance, repair or replacement of utilities in the Easement Area shall be done in such a manner so as to reasonably minimize the impact on the Easement Area and with a high standard of workmanship. After construction, maintenance, repair or replacement of any utilities in the Easement Area, Grantee shall return the Easement Area as nearly as reasonably possible to its pre-impact aesthetic and functional level.

2. Use. Grantee shall not permit the Easements to be used for purposes inconsistent with any local, state or federal laws or regulations or for purposes other than those set forth in this Agreement.

3. Reservation. Grantor reserves for itself, its successors and assigns forever, the right to use the Easement Area in any manner not inconsistent with the rights conveyed in this Agreement; provided, however, that no buildings or other structures shall be constructed or vegetation permitted within the Easement Area which interfere with the use of such area for the purposes permitted hereby.

4. Maintenance. Grantee shall maintain and repair Grantee's utility improvements or facilities, including any electrical lines and any related transformers constructed or installed by Grantee in

the Easement Area. The utilities within the Easement Areas shall be maintained in a good and useful condition by the respective property owners, with damages being promptly repaired by that parcel owner utilizing the Enterprise Fund created by Article V of the Shared Use Agreement dated December 19, 2019 by and between the City and the District. For purposes of the activities required and authorized by this section, the parcels shall be subject to and burdened by temporary easements over such portions of the parcel as are reasonably necessary for the performance of the required maintenance or repairs.

5. Covenants Run with the Land. All covenants, agreements and conditions contained in this Agreement shall be considered as running with the land.

6. Miscellaneous. This Agreement shall be construed in accordance with the laws of the State of Ohio. If any term or provision of this Agreement shall, to any extent, become or be held to be invalid or unenforceable, the remaining terms and provisions shall be unaffected and shall be valid and enforceable in accordance with their terms. No waiver or breach of a covenant or provision in this Agreement shall be deemed a waiver of any other covenant or provision in this Agreement, and no waiver shall be valid unless in writing and executed by the waiving party. No amendment to this Agreement shall be valid or enforceable until the amendment has been executed by the parties hereto and recorded with the Cuyahoga County, Ohio Recorder's office. This Agreement represents the complete agreement of the parties and any modification or amendment hereto shall be valid only if in writing and signed by all parties hereto. This Agreement shall be binding on the parties hereto and their respective heirs, successors and assigns.

City of Brecksville

Brecksville-Broadview Heights City School
District

Mayor Jerry N. Hruby

Superintendent Joelle Magyar

County of Cuyahoga)
) SS:
State of Ohio)

BEFORE ME, A NOTARY PUBLIC in and for said County, personally appeared the
above named _____, authorized representative of the
City of Brecksville who acknowledged that he did sign the foregoing instrument and that the
same is his free act and deed, and that of the Company.

IN TESTIMONY WHEREOF, I have hereunto set my hand and official seal at Brecksville,
Ohio this _____ day of _____, 2020.

County of Cuyahoga)
) SS:
State of Ohio)

Notary Public

BEFORE ME, A NOTARY PUBLIC in and for said County, personally appeared the
above named _____, authorized representative of the
Brecksville-Broadview Heights District of Education who acknowledged that she did sign the
foregoing instrument and that the same is his free act and deed, and that of the Company.

IN TESTIMONY WHEREOF, I have hereunto set my hand and official seal at Brecksville,
Ohio this _____ day of _____, 2020.

Notary Public

THIS INSTRUMENT PREPARED BY:
SERGIO DiGERONIMO
ATTORNEY AT LAW
8748 BRECKSVILLE ROAD
BRECKSVILLE, OHIO 44141